CR-132 Notice of Appeal (Misdemeanor)

Clerk stamps date here when form is filed.

ENDORSED
FILED
SAN FRANCISCO COUNTY
SUPERIOR COURT

2024 MAY -6 P 3:21

CLERK OF THE COURT
BY: Fatema Azam
DEPUTY CLERK

Instructions

- This form is only for appealing in a **misdemeanor case.** You can get other forms for appealing in a civil or infraction case at any courthouse or county law library or online at *www.courts.ca.gov/forms.*
- Before you fill out this form, read *Information on Appeal Procedures for Misdemeanors* (form CR-131-INFO) to know your rights and responsibilities. You can get form CR-131-INFO at any courthouse or county law library or online at *www.courts.ca.gov/forms.*
- **You must file this form no later than 30 days after the trial court issued the judgment or order you are appealing** (see rule 8.853(b) of the California Rules of Court for very limited exceptions). **If your notice of appeal is late, the court will not take your appeal.**
- Fill out this form and make a copy of the completed form for your records.
- Take or mail the completed form to the clerk's office for the same trial court that issued the judgment or order you are appealing. It is a good idea to take or mail an extra copy to the clerk and ask the clerk to stamp it to show that the original has been filed.

You fill in the name and street address of the court that issued the judgment or order you are appealing:

Superior Court of California, County of
SAN FRANCISCO
850 Bryant Street
San Francisco, CA 94103

You fill in the number and name of the trial court case in which you are appealing the judgment or order:

Trial Court Case Number:
22014337

Trial Court Case Name:
People v. Andrew Enriquez

You fill in the appellate division case number (if you know it):

Appellate Division Case Number:
App-24-8800

1 Your Information

a. Name of appellant (the party who is filing this appeal):
Name: Andrew Enriquez (SF # S704834)

b. Appellant's contact information (required):
Street address: 3200 16th Street (Street) San Francisco (City) CA (State) 94103 (Zip)
Mailing address *(if different)*: _____ (Street) _____ (City) _____ (State) _____ (Zip)
Phone: 415-418-8259 E-mail: drewsgsf@gmail.com

c. Appellant's lawyer in the trial court proceedings:
The lawyer filling out this form ☐ is ☒ is not representing the appellant in this appeal.
If a court-appointed lawyer on appeal is being requested, see item 4.
Name: Amy Tao State Bar number: 347273
Street address: 555 Seventh Street (Street) San Francisco (City) CA (State) 94103 (Zip)
Mailing address *(if different)*: _____ (Street) _____ (City) _____ (State) _____ (Zip)
Phone: 415-915-9681 E-mail: amy.tao@sfgov.org
Fax: 415-553-9810

Trial Court Case Name: People v. Andrew Enriquez

Trial Court Case Number: 22014337

2 Judgment or Order You Are Appealing

I am/My client is appealing *(check one)*:

a. ☒ The final judgment of conviction in this case (Pen. Code, § 1466(b)(1)).

☐ I am/My client is contesting only the conditions of the probation.

b. ☐ The following order made after the judgment in this case that affects an important right of mine/my client (for example, an order after a probation violation) (Pen. Code, § 1466(b)(1)).

☐ An order modifying the conditions of probation.

☐ Other *(describe the action you are appealing and give the date the trial court took the action)*:

c. ☐ The trial court has not yet issued a final judgment in this case. I am appealing before final judgment an order that denied a motion to suppress evidence in this case (Pen. Code, § 1538.5(j)).

d. ☐ Other action *(describe the action you are appealing and give the date the trial court took the action)*:

3 Record on Appeal

(See form CR-131-INFO for information about the record on appeal.)

a. ☒ I have attached a completed *Notice Regarding Record on Appeal (Misdemeanor)* (form CR-134).

b. ☐ I have **not** attached a *Notice Regarding Record on Appeal (Misdemeanor)* (form CR-134). I understand that I must file this notice in the trial court within either (1) 20 days after I file this notice of appeal or, if it is later, (2) 10 days after the court appoints a lawyer for me (if I file a request for a court-appointed lawyer within 20 days after I file my notice of appeal). I also understand that if I do not file the notice on time, the court will not be able to consider what was said in the trial court in deciding whether an error was made in the trial court proceedings. In addition, I understand that if I am represented by a court-appointed lawyer and I do not file the notice regarding the record on time, the court may appoint a new lawyer. If I represent myself or hire a lawyer to represent me, and I do not file the notice regarding the record on time, the court may dismiss my appeal.

4 Court-Appointed Lawyer

a. Do you/Does your client want to be represented by a court-appointed lawyer in this appeal? *(Answer yes or no.)*

☒ Yes. Complete and attach *Request for Court-Appointed Lawyer in Misdemeanor Appeal* (form CR-133).

☐ No.

b. Were you/Was your client represented by the public defender or other court-appointed lawyer in the trial court? *(Answer yes or no.)*

☒ Yes.

☐ No. If you answered yes to 4a, complete and attach *Defendant's Financial Statement on Eligibility for Appointment of Counsel and Reimbursement and Record on Appeal at Public Expense* (form CR-105).

REMINDER—Except in the very limited circumstances listed in rule 8.853, you must file this form no later than 30 days after the trial court issued the judgment or order you are appealing in your case. If your notice of appeal is late, the court will not take your appeal.

Date: 5/03/2024

Amy Tao, SBN 347273

Type or print your name

Signature of appellant or attorney

CR-133 Request for Court-Appointed Lawyer in Misdemeanor Appeal

Clerk stamps date here when form is filed.

FILED
SAN FRANCISCO COUNTY
SUPERIOR COURT

2024 MAY -6 P 3: 2

CLERK OF THE COURT
BY: Fatema Azam
DEPUTY CLERK

Instructions

- This form is only for requesting that the court appoint a lawyer to represent a defendant in a **misdemeanor** appeal.
- Before you fill out this form, read *Information on Appeal Procedures for Misdemeanors* (form CR-131-INFO) to know your rights and responsibilities. You can get form CR-131-INFO at any courthouse or county law library or online at *www.courts.ca.gov/forms*.
- The court is required to appoint a lawyer to represent you if you are indigent (you cannot afford to pay for a lawyer) and:
  - (1) You were convicted and your punishment includes going to jail or paying a fine of more than $500 (including penalty and other assessments); or
  - (2) You are likely to suffer other negative consequences from the conviction (for example, immigration problems or inability to get or keep a license or permit); or
  - (3) You have not been convicted but you are likely to suffer significant harm if you lose the appeal.
- Fill out this form and make a copy of the completed form for your records.
- Take or mail the completed form to the clerk's office for the same trial court where the notice of appeal was filed. It is a good idea to take or mail an extra copy to the clerk and ask the clerk to stamp it to show that the original has been filed.

You fill in the name and street address of the court that issued the judgment or order you are appealing:

Superior Court of California, County of
SAN FRANCISCO
850 Bryant Street
San Francisco, CA 94103

You fill in the number and name of the trial court case in which you are appealing the judgment or order:

Trial Court Case Number:
22014337

Trial Court Case Name:
People v. Andrew Enriquez

You fill in the appellate division case number (if you know it):

Appellate Division Case Number:

1 Your Information

a. Name of Defendant (the party who is filing this request):

Name: Andrew Enriquez (SF # S704834)

Street address: 3200 16th Street (Street) San Francisco (City) CA (State) 94103 (Zip)

Mailing address *(if different)*: _____ (Street) _____ (City) _____ (State) _____ (Zip)

Phone: 415-418-8259 Email: drewsgsf@gmail.com

b. Defendant's lawyer *(skip this if the defendant is filling out this form)*:

Name: Amy Tao State Bar number: 347273

Street address: 555 Seventh Street (Street) San Francisco (City) CA (State) 94103 (Zip)

Mailing address *(if different)*: _____ (Street) _____ (City) _____ (State) _____ (Zip)

Phone: 415-915-9681 Email: amy.tao@sfgov.org

Fax: 415-553-9810

Trial Court Case Name: People v. Andrew Enriquez

Trial Court Case Number: 22014337

Information About Your Case

(2) Were you/was your client represented by the public defender or another court-appointed lawyer in the trial court proceedings in this case? *(Check a or b.)*

a. ☑ Yes

b. ☐ No *(Complete and attach* Defendant's Financial Statement on Eligibility for Appointment of Counsel and Reimbursement and Record on Appeal at Public Expense *(form MC-210) showing that you/your client cannot afford to hire a lawyer. You can get form MC-210 at any courthouse or county law library or online at* www.courts.ca.gov/forms.*)*

(3) If you have been convicted, describe the punishment the trial court gave you/your client in this case *(check all that apply and fill in any required information):*

a. ☑ Jail time

b. ☑ A fine (including penalty and other assessments) *(fill in the amount of the fine):* $ 610.00

c. ☐ Restitution *(fill in the amount of the restitution):* $ _____

d. ☑ Probation *(fill in the amount of time on probation):* 1 year

e. ☑ Other punishment *(describe any other punishment that the trial court gave you/your client in this case):*
3 month first offender program, Mothers Against Drunk Driving Panel

f. ☑ *Describe any other negative consequences that you are/your client is likely to suffer because of this conviction:*
Points on DMV driver's license record.

(4) *If you have not been convicted, describe the order being challenged on appeal:*

_____

Notice to Defendant: If you were represented by appointed counsel in the trial court and the trial court finds that you are able to pay all or part of the cost of that counsel, at the conclusion of the proceedings, the court may also determine after a hearing whether you are able to pay all or a portion of the cost of any attorney appointed to represent you in this appeal. If the court determines that you are at that time able to pay, the court will order you to pay all or part of such cost. Such orders will have the same force and effect as a judgment in a civil action and will be subject to enforcement.

Date: 5/3/2024

Amy Tao, SBN 347273
Type or print name

Signature of defendant or attorney

CR-134 Notice Regarding Record on Appeal (Misdemeanor)

Clerk stamps date here when form is filed.

ENDORSED
FILED
SAN FRANCISCO COUNTY
SUPERIOR COURT

2024 MAY -6 P 3:20

CLERK OF THE COURT
BY: Fatema Azam
DEPUTY CLERK

Instructions

- This form is only for giving the court notice about the record on appeal in a **misdemeanor case.**
- Before you fill out this form, read *Information on Appeal Procedures for Misdemeanors* (form CR-131-INFO) to know your rights and responsibilities. You can get form CR-131-INFO at any courthouse or county law library or online at *www.courts.ca.gov/forms*.
- This form can be filed with your notice of appeal. If it is not filed with your notice of appeal, this form must be filed within either:
  (1) 20 days after you file your notice of appeal, or, if it is later
  (2) 10 days after the court appoints a lawyer to represent you on appeal (if you file a request for a court-appointed lawyer within 20 days after you file your notice of appeal).
- Fill out this form and make a copy of the completed form for your records.
- Take or mail the completed form to the clerk's office for the same trial court where you filed your notice of appeal. It is a good idea to take or mail an extra copy to the clerk and ask the clerk to stamp it to show that the original has been filed.

You fill in the name and street address of the court that issued the judgment or order you are appealing:

Superior Court of California, County of
SAN FRANCISCO
850 Bryant Street
San Francisco, CA 94103

You fill in the number and name of the trial court case in which you are appealing the judgment or order:

Trial Court Case Number:
22014337

Trial Court Case Name:
People v. Andrew Enriquez

You fill in the appellate division case number (if you know it):

Appellate Division Case Number:

1 Your Information

a. Name of appellant (the party who is filing this appeal):

Name: Andrew Enriquez (SF # S704834)

b. Appellant's contact information (required):

Street address: 3200 16th Street (*Street*) San Francisco (*City*) CA (*State*) 94103 (*Zip*)

Mailing address *(if different)*: _____ (*Street*) _____ (*City*) _____ (*State*) _____ (*Zip*)

Phone: 415-418-8259 E-mail: drewsgsf@gmail.com

c. Appellant's lawyer in the trial court proceedings:

The lawyer filling out this form ☐ is ☐ is not representing the appellant in this appeal.

Name: Amy Tao State Bar number: 347273

Street address: 555 Seventh Street (*Street*) 555 Seventh Street (*City*) CA (*State*) 94066 (*Zip*)

Mailing address *(if different)*: _____ (*Street*) _____ (*City*) _____ (*State*) _____ (*Zip*)

Phone: 415-915-9681 E-mail: amy.tao@sfgov.org

Fax: 415-553-9810

Trial Court Case Name: _____

Trial Court Case Number: 22014337

Information About Your Appeal

(2) On *(fill in the date):* 5/3/2024 I/my client filed a notice of appeal in the trial court case identified in the box on page 1 of this form.

Your Choices About the Record on Appeal

Stipulation for Limited Record

(3) ☐ The respondent and I/my client have agreed ("stipulated") under rule 8.860 that parts of the normal record on appeal are not required for proper determination of this appeal. A copy of our stipulation identifying those parts of the record that are not required is attached.

Record of Oral Proceedings

You do not have to provide the appellate division with a record of what was said in the trial court (this is called a record of the "oral proceedings"). But, if you do not, the appellate division will not be able to consider what was said during the trial court proceedings in deciding whether a legal error was made in those proceedings.

(4) I elect (choose)/My client elects to proceed *(check a or b):*

a. ☐ WITHOUT a record of the oral proceedings in the trial court (*skip item (5); sign and date this form*). I understand that if I proceed without a record of the oral proceedings, the appellate division will not be able to consider what was said in the trial court during those proceedings in deciding whether a legal error was made.

(Write initials here): _____

b. ☑ WITH a record of the oral proceedings in the trial court *(complete item (5) below)*. I understand that if I elect (choose) to proceed WITH a record of the oral proceeding in the trial court, I have to choose the record I want to use and take the actions described below to make sure this record is provided to the appellate division. I understand that if I do not take the actions described below and the appellate division does not receive this record, I am not likely to succeed in my appeal.

(Write initials here): DRT

(5) I want to use the following record of what was said in the trial court proceedings in my case *(check and complete only one—a, b, c, or d):*

a. ☐ **Reporter's Transcript.** *This option is available only if there was a court reporter in the trial court who made a record of what was said in court. Check with the trial court to see if there was a court reporter in your case before choosing this option. Some courts also have local rules that establish procedures for determining whether only a portion of a reporter's transcript or a different form of the record will be sufficient for an effective appeal. Check with the trial court to see if it has such a local rule. (Check and complete (1), (2) or (3).)*

(1) ☐ Within 10 days of when I receive the court reporter's estimate of the cost of this transcript, I will file a certified transcript of all the proceedings required by rule 8.865 that complies with rule 8.144.

(2) ☐ I will pay the trial court clerk's office for the reporter's transcript myself within 10 days of when I receive the court reporter's estimate of the costs of this transcript. Alternatively, I will pay the reporter directly and file with the trial court a written waiver of deposit signed by the reporter. I understand that if I do not pay for this transcript, it will not be prepared and provided to the appellate division.

(3) ☐ I am asking that the reporter's transcript be prepared at no cost to me because I cannot afford to pay this cost.

(a) ☐ I was represented by the public defender or another court-appointed lawyer in the trial court proceedings in this case.

(b) ☐ I was not represented by the public defender or another court-appointed lawyer in the trial court proceedings in this case, but I have completed and attached *Defendant's Financial Statement on Eligibility for Appointment of Counsel and Reimbursement and Record on Appeal at Public Expense* (form CR-105). *(You can get form CR-105 at any courthouse or county law library or online at* www.courts.ca.gov/forms. *The court will review this form to decide if you are eligible for a reporter's transcript at no cost to you.)*

OR

b. ☑ **Transcript From Official Electronic Recording.** *This option is available only if an official electronic recording was made of what was said in the trial court. Check with the trial court to see if an official electronic recording was made in your case before choosing this option. Some courts also have local rules that establish procedures for determining whether only a portion of a transcript or a different form of the record will be sufficient for an effective appeal. Check with the trial court to see if it has such a local rule. (Check and complete (1) or (2).)*

(1) ☐ I will pay the trial court clerk's office for this transcript myself. I understand that if I do not pay for this transcript, it will not be prepared and provided to the appellate division.

(2) ☑ I am asking that this transcript be provided at no cost to me because I cannot afford to pay this cost.

(a) ☑ I was represented by the public defender or another court-appointed lawyer in the trial court proceedings in this case.

(b) ☐ I was not represented by the public defender or another court-appointed lawyer in the trial court proceedings in this case, but I have completed and attached *Defendant's Financial Statement on Eligibility for Appointment of Counsel and Reimbursement and Record on Appeal at Public Expense* (form CR-105). *(You can get form CR-105 at any courthouse or county law library or online at* www.courts.ca.gov/forms. *The court will review this form to decide if you are eligible for a transcript at no cost to you.)*

5 *(continued)*

OR

c. ☐ **Copy of Official Electronic Recording.** *This option is available only if an official electronic recording was made of what was said in the trial court, the court has a local rule for the appellate division permitting the use of the official electronic recording itself as the record of the court proceedings, and you and the respondent (the prosecuting agency) have agreed (stipulated) that you want to use the recording itself as the record of what was said in your case. Check with the trial court to see if an official electronic recording was made in your case before choosing this option. You must attach a copy of your agreement (stipulation) with the respondent to this notice. (Check and complete (1) or (2).)*

(1) ☐ I will pay the trial court clerk's office for this official electronic recording myself. I understand that if I do not pay for this recording, it will not be prepared and provided to the appellate division.

(2) ☐ I am asking that this official electronic recording be provided at no cost to me because I cannot afford to pay this cost.

(a) ☐ I was represented by the public defender or another court-appointed lawyer in the trial court proceedings in this case.

(b) ☐ I was not represented by the public defender or another court-appointed lawyer in the trial court proceedings in this case, but I have completed and attached *Defendant's Financial Statement on Eligibility for Appointment of Counsel and Reimbursement and Record on Appeal at Public Expense* (form CR-105). *(You can get form CR-105 at any courthouse or county law library or online at* www.courts.ca.gov/forms. *The court will review this form to decide if you are eligible for a copy of the official electronic recording at no cost to you.)*

OR

d. ☐ **Statement on Appeal.** A statement on appeal is a summary of the trial court proceedings approved by the trial court. See form CR-131-INFO for information about preparing a proposed statement. *(Check and complete (1) or (2).)*

(1) ☐ I have attached my proposed statement on appeal to this notice. (*If you are not represented by a lawyer in this appeal, you must use* Proposed Statement on Appeal (Misdemeanor) *(form CR-135) to prepare and file this proposed statement. You can get form CR-135 at any courthouse or county law library or online at* www.courts.ca.gov/forms.)

(2) ☐ I have NOT attached my proposed statement on appeal to this notice. I understand that I must serve and file this proposed statement in the trial court within 20 days of the date I file this notice. I understand that if I do not serve and file the proposed statement on time, and if I am represented by a court-appointed lawyer, the court may appoint a new lawyer. If I represent myself or hire a lawyer to represent me, and I do not serve and file the proposed statement on time, the court may dismiss my appeal.

Date: 5/3/2024

Amy Tao, SBN 347273
Type or print your name

Signature of appellant or attorney